SUM-100

SUMMONS
(CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

FILED
SUPERIOR COURT SAN JOAQUIN
2026 FEB 10 P 2:29
STEPHANIE BOHRER, CLERK
BY NATALIE BASHAW

NOTICE TO DEFENDANT: KATIE PALACIOS, Clinical Director, HOPE Program
(AVISO AL DEMANDADO): (Stockton, California), an individual;
HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):

BRENDAN NGEHSI NEWANFORBI

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.

¡AVISO! *Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.*

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is:
(El nombre y dirección de la corte es): San Joaquin County Superior Court
Stockton Courthouse, 180 E. Weber Avenue, Stockton, CA 95202

CASE NUMBER: STK-CV-UF 2026-1032

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
Brendan Ngehsi Newanforbi, 1455 Cat Tail Drive, Stockton, CA 95204

DATE: February 10, 2026
(Fecha) FEB 10 2026 Clerk, by *(Secretario)* STEPHANIE BOHRER / NATALIE BASHAW, Deputy *(Adjunto)*

(For proof of service of this summons, use Proof of Service of Summons *(form POS-010).)*
(Para prueba de entrega de esta citatión use el formulario Proof of Service of Summons, *(POS-010)).*

[SEAL]

NOTICE TO THE PERSON SERVED: You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☐ on behalf of *(specify):* HOPE Psychotherapy, Inc.
   under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☐ by personal delivery on *(date):*

Form Adopted for Mandatory Use
Judicial Council of California
SUM-100 [Rev. July 1, 2009]

SUMMONS

Code of Civil Procedure §§ 412.20, 465
www.courts.ca.gov

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SUPERIOR COURT OF CALIFORNIA

County of San Joaquin
180 E Weber Avenue
Stockton, CA 95202

NOTICE OF CASE ASSIGNMENT AND NOTICE OF HEARING

Case Number: **STK-CV-UF-2026-0001032**

A Case Management Conference has been scheduled for your case as indicated below. A copy of this information must be provided with the complaint or petition, and with any cross-complaint that names a new party to the underlying action. Disregard hearing date if that date has expired.

Hearing: Case Management Conference	**Date: 10/13/2026**	**Time: 8:45 AM Department: 10A**
JUDGE	**COURT LOCATION**	**PHONE Numbers:**
THIS CASE HAS BEEN ASSIGNED TO JUDGE GEORGE J. ABDALLAH IN DEPARTMENT 10A FOR ALL PURPOSES, INCLUDING TRIAL.	**Stockton**	**Stockton: 209-992-5693** **Lodi: 209-992-5522**

[X] ADR & Scheduling Information is available on court website @ sjcourts.org/self-help

1. You must:

   a. **Serve** all named defendant's and file proofs of service on those defendants with the court Within 60 days of the filing of the complaint. (CRC 3.110)

   b. **File and serve** a completed Case Management Conference Statement (use of JC form CM-110 is mandatory) at least 15 days before the Case Management Conference.

   c. **Meet and Confer,** in person or by telephone, to consider each of the issues identified in CRC 3.727 no later than 30 calendar days before the date set for the Case Management Conference. (CRC 3.724)

   d. **Collection cases** are managed pursuant to CRC 3.740.

2. Case Management Conferences, Law and Motion and Ex Partes will be held remotely unless ordered otherwise. For telephonic appearance phone numbers, information and instructions visit @ https://www.sjcourts.org/divisions/civil/ .

3. If this case was eFiled, the plaintiff/petitioner or their attorney must access their copy of this notice and the issued summons for service from the court's case management system at the following link: cms.sjcourts.org/fullcourtweb/start.do.

4. Courtesy Copies: Courtesy copies must be submitted as outlined in Local Rule 3-117. Courtesy copies (only) may be placed in the drop boxes located on the 10th and 11th floor. Courtesy copies can also be placed in the drop box located outside of the courthouse.

Visit our website @ www.sjcourts.org for more information regarding civil cases, local rules and forms.

Date: 02/10/2026 Natalie Bashaw ,Deputy Clerk

NOTICE OF CASE ASSIGNMENT AND NOTICE OF HEARING

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com
In Pro Per

FILED
SUPERIOR COURT SAN JOAQUIN
2026 FEB 10 P 2:29
STEPHANIE BOHRER, CLERK
BY NATALIE BASHAW
DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN JOAQUIN

STK-CV-UF-2026-1032

BRENDAN NGEHSI NEWANFORBI,

Plaintiff(s),

vs.

KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendant(s).

COMPLAINT FOR DAMAGES
1. Fraud / Intentional Misrepresentation
2. Negligence
3. False Imprisonment / Unlawful Restraint
4. Intentional Infliction of Emotional Distress
5. Intentional Interference with Prospective Economic Advantage

DEMAND FOR JURY TRIAL

INTRODUCTION

Plaintiff BRENDAN NGEHSI NEWANFORBI ("Plaintiff") brings this action for damages against HOPE Psychotherapy, Inc. ("HOPE") and its Stockton program director, Katie Palacios ("Palacios"). HOPE is a private, for-profit corporation that contracts with the California Department of Corrections and Rehabilitation ("CDCR") to provide mandatory sex offender treatment services. This is not a lawsuit against the state. It is a lawsuit against a private company and its employee for specific, documented misconduct that has caused Plaintiff concrete, individualized harm.

For over five years, HOPE has represented to CDCR that Plaintiff has "not completed" sex offender treatment. That representation is not the product of an individualized clinical assessment. It is the automatic output of HOPE's blanket retention policy—a policy under which no parolee can complete treatment prior to discharge from parole, regardless of clinical progress, compliance, or risk level. A California Superior Court has already found that this policy "vitiates the Legislature's directive." In re Frederick Dwyer, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023). HOPE continued applying it anyway.

CDCR's discharge review process treats HOPE's "completion" status as a gatekeeper for parole discharge eligibility. By misrepresenting a policy-driven predetermination as an individualized clinical assessment, HOPE directly caused the continued custodial supervision that has restricted Plaintiff's liberty, destroyed his earning capacity as a Commercial Driver's License holder, and inflicted severe emotional distress for years.

HOPE's motive is financial. Under its fee-for-service billing model, every parolee generates approximately $10,600 per year in group session and Containment Team Meeting fees. Every discharge terminates that revenue stream. There is no compensation for successful treatment completion—only ongoing per-session revenue that ceases when a client is discharged. HOPE controls the determination that triggers discharge eligibility while possessing a direct financial stake in preventing it.

Because HOPE is a private entity, no government tort claim is required. Gov. Code §§ 900–915.4 apply only to public entities. This action is filed directly under applicable statutes of limitations.

PARTIES

Plaintiff BRENDAN NGEHSI NEWANFORBI is an adult resident of San Joaquin County, California, currently on parole supervision under the jurisdiction of CDCR, Division of Adult Parole Operations ("DAPO"), assigned CDCR Number BF3571. Plaintiff resides at 1455

Cat Tail Drive, Stockton, California 95204. Plaintiff holds a California Commercial Driver's License ("CDL").

Defendant HOPE PSYCHOTHERAPY, INC. ("HOPE"), d/b/a HOPE PROGRAM, is a California corporation and CASOMB-certified sex offender treatment provider. HOPE contracts with CDCR to provide mandatory treatment services under Penal Code § 3008(d). HOPE is a private entity that exercises delegated authority over liberty-affecting determinations, including treatment phase advancement, titration, and completion status. As a private entity performing a delegated governmental function, HOPE is subject to tort liability under ordinary principles applicable to private parties. Giraldo v. Department of Corrections & Rehabilitation (2008) 168 Cal.App.4th 231, 253. HOPE does not enjoy governmental immunity under Government Code §§ 815–818.9.

Defendant KATIE PALACIOS ("Palacios") is the Director of the HOPE Program Stockton, employed by HOPE Psychotherapy, Inc. Director Palacios exercises supervisory authority over HOPE's phase definitions, titration criteria, module completion standards, and treatment completion determinations at the Stockton location where Plaintiff receives treatment. Palacios is a "managing agent" within the meaning of Civil Code § 3294(b)—she exercises substantial independent authority and judgment over treatment determinations that directly affect client liberty and that are binding on HOPE in its reporting to CDCR. Palacios is sued in her individual capacity.

Defendants DOES 1 through 10 are persons or entities whose true names and capacities are unknown to Plaintiff at this time. Plaintiff is informed and believes, and thereon alleges, that each DOE Defendant is in some manner responsible for the occurrences alleged herein. Plaintiff will amend this complaint to allege their true names and capacities when ascertained.

At all times relevant to this complaint, Palacios acted within the course and scope of her

employment with HOPE Psychotherapy, Inc. HOPE is vicariously liable for Palacios's tortious conduct under the doctrine of respondeat superior. Civ. Code § 2338; Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296–297. The wrongful acts alleged herein were committed, authorized, ratified, or consciously disregarded by HOPE's managing agents, including Palacios and HOPE's Executive Director of Clinical Training, within the meaning of Civil Code § 3294(b).

JURISDICTION AND VENUE

This Court has jurisdiction over this action pursuant to Article VI, Section 10 of the California Constitution and Code of Civil Procedure § 410.10. The amount in controversy exceeds $25,000, establishing this as an unlimited civil case.

Venue is proper in San Joaquin County pursuant to Code of Civil Procedure § 395(a) because a substantial part of the events giving rise to this action occurred in San Joaquin County, including HOPE's provision of treatment services to Plaintiff at its Stockton location, Palacios's supervision of the treatment determinations at issue, and the preparation and submission to CDCR of the treatment characterizations that directly caused Plaintiff's continued supervision.

TIMELINESS OF THIS ACTION

Plaintiff first discovered, or reasonably should have discovered, that HOPE's "non-completion" characterization was not an individualized clinical assessment but the product of a blanket retention policy when the November 2025 Discharge Review Report incorporated HOPE's predetermined characterization as a basis for denying discharge. Before that review, HOPE's representations were facially consistent with an individualized clinical assessment, and Plaintiff had no reason to know they were the automatic output of a blanket policy making completion structurally impossible.

This action is timely under each applicable statute of limitations:

(a) Fraud (CCP § 338(d)). Three years from discovery. Plaintiff discovered the fraud no earlier than November 2025. Filing on February 10, 2026 is well within the three-year period.

(b) Negligence, IIED, and False Imprisonment (CCP § 335.1). Two years from accrual. The November 19, 2025 finalization of the Discharge Review Report is the accrual date for these claims. Filing on February 10, 2026 is within the two-year period. Moreover, Defendants' conduct constitutes a continuing tort: each day of ongoing custodial restraint, each new treatment status report submitted to CDCR, and each additional session in which HOPE applies its blanket retention policy is a separate tortious act that independently restarts the limitations period.

(c) Interference with Prospective Economic Advantage (CCP § 339). Two years. Same accrual analysis as above, with continuing-tort doctrine independently applicable: each new treatment characterization submitted to CDCR that perpetuates supervision restrictions constitutes a new act of interference.

GENERAL ALLEGATIONS

The Legal Framework: Why a No-Completion-Before-Discharge Policy Is Unlawful

California Penal Code § 3008(d)(1) provides that parolees "shall participate" in sex offender management programs. Section 3008(d)(2) limits the duration of that participation: "[p]articipation shall be for at least one year and up to the entire period of parole." The phrase "up to" is a ceiling, not a floor—it establishes that treatment may last the entire parole term but is not required to. This statutory language necessarily presupposes that a parolee can complete treatment before the end of the parole term.

California Penal Code § 3001(a)(2) provides that persons required to register under Penal Code § 290, who have been on parole continuously for at least one year, "shall be discharged" unless the department recommends retention and the Board of Parole Hearings finds "good cause."

Treatment non-completion is one factor CDCR uses to justify retention recommendations. When a treatment provider's policy makes completion impossible, that policy transforms § 3001(a)(2)'s "shall be discharged" into "shall never be discharged"—a result the Legislature did not authorize.

Title 15 CCR § 3574(f)(1), effective April 17, 2025, makes this explicit: "Treatment completion and parole discharge are legally separate decisions." A treatment provider that refuses to certify completion until discharge from parole collapses these legally separate decisions into one, in direct violation of the regulation.

HOPE's blanket retention policy—under which no parolee can complete treatment prior to discharge—violates all three provisions. It converts the "up to" ceiling of § 3008(d)(2) into a mandatory floor. It nullifies § 3001(a)(2)'s discharge framework by ensuring treatment non-completion is always available as a retention justification. And it merges the "legally separate decisions" that § 3574(f)(1) requires be kept apart.

Plaintiff's Parole Status and Treatment History

Plaintiff was released to parole supervision on December 2, 2020, with a Controlling Discharge Date of December 2, 2030. He is required to register pursuant to Penal Code §§ 290–290.023 and participates in the Sex Offender Management Program ("SOMP") as mandated by Penal Code § 3008(d). His supervision category is "SA" (Sex Offender Active) with a CSRA Score of 2 (Moderate).

Plaintiff has participated in the HOPE Program continuously for over five years since December 2, 2020. During that time, he has attended group sessions, individual sessions, and Containment Team Meetings ("CTMs") as directed. He has complied with treatment attendance requirements except for two documented absences resolved with verbal reprimands—the lowest possible sanction.

CDCR's discharge review process uses CDCR Form 1502-DR, which incorporates the

treatment provider's characterization of the parolee's treatment status. CDCR's discharge decision is substantially dependent on HOPE's "completion" representation. When HOPE reports that a parolee has "not completed" treatment, CDCR treats that characterization as a dispositive predicate for denying discharge. HOPE knows this.

HOPE's Blanket Retention Policy

HOPE maintains an official policy of refusing to certify "completion" for any parolee prior to discharge from parole, regardless of clinical progress, compliance, risk reduction, or time in treatment. This policy was documented under oath in In re Frederick Dwyer, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023). A true and correct copy of the Dwyer order is attached as Exhibit A.

In Dwyer, HOPE's Executive Director of Clinical Training testified that HOPE's "aftercare" phase is "mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment" and that HOPE "believes a continuous connection to treatment is required for all sex offender parolees." Dwyer, slip op. at 10–11.

The Dwyer court concluded: "Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully 'complete' a sex offender management treatment program short of being discharged from parole. . . . Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and 'up to' the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole." Dwyer, slip op. at 10–11.

Despite this judicial condemnation and the subsequent April 2025 regulatory amendments to Title 15 CCR § 3574—amendments enacted specifically to address these deficiencies—HOPE continues to apply the same blanket retention policy.

HOPE's Arbitrary Treatment Structure

HOPE's treatment structure requires mandatory phase repetitions with no basis in statute or regulation. Participants must complete the "Core" phase twice, the "Maintenance" phase twice, and then a "titration" phase before being considered for program completion. This framework appears nowhere in Penal Code § 3008(d) or Title 15 CCR § 3574. It results in participants remaining in treatment for 5–7+ years with no meaningful prospect of completion.

HOPE's criteria for phase progression, titration, and completion are unpublished, internally contradictory, and unknowable to participants. HOPE has never provided Plaintiff with: (a) written criteria for program completion; (b) a written explanation of what conduct or progress is required to advance through phases; (c) an appeal process for titration or phase-advancement decisions; or (d) any mechanism to challenge lost homework or forced phase restarts.

Palacios has admitted that homework assignments are "routinely lost" within the HOPE Program. Participants, including Plaintiff, are forced to restart phases due to staff turnover or job-related group changes, forfeiting progress previously earned.

The combined effect of HOPE's blanket retention policy, arbitrary phase-looping structure, unpublished criteria, routine homework losses, and forced restarts is that Plaintiff's characterization as "non-complete" was predetermined from the day he entered the program. It bears no relationship to his individual clinical progress, compliance, or risk level.

HOPE's Financial Incentive to Retain

HOPE operates under a fee-for-service billing model. Per Alameda County Probation Department Procurement Contract No. 26374, First Amendment approved January 9, 2024 (relevant excerpts attached as Exhibit B), HOPE bills: $100.00 per group psychotherapy session (90 minutes); $100.00 per Collaborative Model Team meeting (per client staffed, 90 minutes); $200.00 per individual psychotherapy session (60 minutes); $500.00 per Polygraph Examination,

$1,800.00 per psychosexual evaluation; and $125.00 per quarterly treatment plan.

A single parolee attending two group sessions per week (approximately 104 sessions annually at $100 each) and two CTMs per year ($100 each) generates approximately $10,600 annually in group and CTM fees alone—before individual sessions, quarterly treatment plans, or evaluations. Over a 10-year parole term, that represents approximately $106,000 in baseline revenue from a single client. Revenue that terminates upon discharge.

HOPE's contracts provide no documented compensation, bonus, or incentive for successful treatment completion. HOPE's entire revenue model rewards retention and penalizes discharge. HOPE controls the "completion" determination that CDCR uses as a gatekeeper for discharge eligibility, while possessing a direct, ongoing financial interest in ensuring that determination is never favorable.

CDCR's budget for sex offender management contract services is calculated on an Average Daily Population ("ADP") basis, with total fund allocations of approximately $26 million and substantial per-capita rates. This funding structure creates parallel institutional incentives favoring retention over discharge.

The November 2025 Discharge Review

On or about November 12, 2025, CDCR Parole Agent Long Moua prepared CDCR Form 1502-DR ("Discharge Review Report") for Plaintiff. The report was reviewed by Unit Supervisor Gary Noguchi (November 14, 2025) and approved by Parole Administrator Keely Dodd (November 19, 2025). A true and correct copy is attached as Exhibit C.

The Discharge Review Report incorporates HOPE's treatment characterization. Objective 6 (Sex Offender Treatment) scores Plaintiff as having "attended and partially participated in sex offender treatment." The agent narrative states Plaintiff "has not completed sex offender treatment." This "non-completion" characterization was HOPE's input to the discharge review process.

The report also states: "Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term." No such eligibility rule exists in any California statute, regulation, or published CDCR policy. Penal Code § 3001(a)(2) provides eligibility after one year of continuous parole with no exception for term length.

The report's recommendation: "Retain on Parole." The "Parolee Provided Copy" checkbox is blank. Plaintiff was never served with the report.

But for HOPE's misrepresentation of Plaintiff's treatment status—characterizing a policy-driven predetermination as an individualized clinical non-completion - the discharge review would not have had the treatment-based justification it relied upon. HOPE's representation was a substantial factor in causing the adverse outcome.

Specific Harm to Plaintiff

As a direct result of HOPE's conduct, Plaintiff continues to be subjected to custodial parole supervision conditions including: continuous GPS monitoring; curfew restrictions; geographic movement limitations; mandatory HOPE treatment attendance (multiple sessions per week); reporting requirements to parole officers; restrictions on employment, travel, and association; and the requirement to maintain CDCR-approved housing.

These custodial conditions have specifically and directly prevented Plaintiff from pursuing full, unrestricted employment as a CDL holder. Commercial trucking—particularly long-haul and regional routes—requires the ability to travel without geographic restrictions, maintain flexible schedules, and operate free from monitoring equipment and mandatory treatment attendance. Plaintiff's GPS monitoring, curfew, movement restrictions, and mandatory HOPE treatment schedule have suppressed his CDL earnings throughout the period of Defendants' tortious conduct. Plaintiff's federal W-2 wage statements document actual, supervision-suppressed CDL earnings

across multiple carriers: in 2022, Plaintiff earned $39,553 from three carriers (PRP Logistics LLC, PODS Enterprises LLC, and Tiger Lines); in 2023, Plaintiff earned $11,145 from Rocha Transportation during a period of heightened supervision restrictions; in 2024, Plaintiff earned $55,894 from three carriers (Centerline Drivers LLC, BND Transport Inc., and Rocha Transportation). Absent Defendants' conduct, Plaintiff—an experienced CDL holder with documented employment relationships with six carriers—would have earned no less than approximately $72,000 per year, a conservative estimate based on Plaintiff's actual multi-carrier earnings history and prevailing Central Valley CDL market data, to be further supported by expert testimony at trial. Plaintiff's $72,000 annual earning capacity represents a conservative midpoint between his documented multi-carrier earnings history and prevailing Central Valley CDL market rates for unrestricted drivers. The difference between Plaintiff's but-for earning capacity and his actual, supervision-suppressed earnings constitutes documented lost income of no less than $32,447 (2022), $60,855 (2023), and $16,106 (2024)—a total of $109,408 in lost wages for those three years alone. Even in 2024—Plaintiff's highest-earning year—his income remained materially suppressed relative to his but-for capacity due to ongoing geographic, scheduling, and monitoring restrictions imposed as a direct consequence of Defendants' conduct. These losses continue to accrue at approximately $6,000 per month ($72,000 annually) for each month Plaintiff remains unable to pursue unrestricted CDL employment due to Defendants' continuing conduct.

Plaintiff has also incurred direct costs of compliance with the unlawful supervision conditions, including transportation to and from mandatory HOPE treatment sessions, time costs of treatment attendance, and related expenses.

Plaintiff has suffered severe emotional distress, including: pervasive anxiety from continuous GPS monitoring imposed based on a predetermined treatment characterization; humiliation and stigma from being classified as having "not completed" treatment under a system where completion

is unattainable; psychological harm from the knowledge that his continued custody rests on a misrepresentation; chronic sleep disturbance and hypervigilance arising from the cumulative stress of over five years of arbitrary custodial control with no achievable exit; and ongoing distress from entrapment in a treatment system that profits from his continued enrollment.

FIRST CAUSE OF ACTION

FRAUD / INTENTIONAL MISREPRESENTATION

Against All Defendants

Plaintiff incorporates by reference all preceding paragraphs.

The elements of fraud are: (1) a misrepresentation of a material fact; (2) knowledge of its falsity (scienter); (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage. Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.

A. Misrepresentation

HOPE and Palacios made the following misrepresentations of material fact to CDCR:

(a) Non-Completion Misrepresented as Individualized Assessment. HOPE represented to CDCR, through treatment status reports and CTM inputs incorporated into Plaintiff's November 2025 Discharge Review Report, that Plaintiff "has not completed" sex offender treatment. This representation was not the product of an individualized clinical assessment of Plaintiff's progress, risk reduction, or compliance. It was the automatic output of HOPE's blanket retention policy, which makes completion impossible for all participants prior to parole discharge. HOPE's policy-driven non-completion was misrepresented as an individualized assessment of Plaintiff's clinical performance.

(b) False Promise of Achievable Completion. HOPE represented to Plaintiff and to CDCR, through its phase system and treatment structure, that a meaningful, achievable path to treatment completion exists. HOPE's internal structure---requiring dual Core phases, dual Maintenance

phases, titration, and a "completion" stage that cannot be reached prior to parole discharge—is designed to ensure indefinite retention. The representation that completion is achievable is materially false.

(c) Individual Status Misrepresented as Individual Performance. HOPE represented Plaintiff's treatment status to CDCR as reflecting his individual clinical performance, when in reality it was predetermined by a blanket policy applied uniformly to all HOPE participants regardless of their individual progress, compliance, or risk scores.

B. Scienter

HOPE and Palacios knew these representations were false. The Dwyer court documented testimony from HOPE's own Executive Director of Clinical Training admitting that HOPE's policy requires continuous treatment for all parolees until discharge. Palacios, as Director of the Stockton program, implemented and oversaw this exact policy. Palacios knew that HOPE's characterization of Plaintiff did not reflect an individualized clinical assessment because HOPE's policy forecloses completion for every participant, without exception.

C. Intent to Induce Reliance

HOPE and Palacios made these misrepresentations with the intent to induce CDCR's reliance. HOPE knew that CDCR's discharge decision was substantially dependent on HOPE's "completion" representation. HOPE knew that CDCR treated HOPE's treatment characterizations as dispositive predicates in discharge reviews and incorporated them wholesale into the 1502-DR. HOPE designed its reporting to CDCR to convey individualized clinical judgments when the underlying determinations were policy-driven.

HOPE's financial incentive provides additional evidence of intent. Every parolee retained in treatment generates approximately $10,600 annually in baseline group and CTM revenue for HOPE. Every discharge terminates that revenue. There is no financial incentive for completion.

HOPE's misrepresentations served HOPE's business model.

D. Justifiable Reliance

CDCR justifiably relied on HOPE's representations. CDCR's discharge review process, as documented in the 1502-DR, adopted HOPE's treatment characterizations without independent verification. CDCR was entitled to rely on a CASOMB-certified treatment provider's representations regarding treatment status. HOPE held itself out as a professional clinical provider making individualized assessments—not as a policy administrator applying a blanket retention rule. The reliance was reasonable and HOPE intended it.

E. Resulting Damage

As a direct and proximate result of HOPE's and Palacios's fraud, Plaintiff has suffered: continued parole supervision based on fraudulent treatment characterizations; custodial restraint including GPS monitoring, curfew, geographic restrictions, and mandatory treatment attendance; lost employment income as a CDL holder totaling no less than $109,408 for the years 2022–2024 alone, measured as the difference between Plaintiff's but-for earning capacity of $72,000 per year and his actual, supervision-suppressed earnings as documented in federal W-2 wage statements, with additional losses continuing to accrue; direct costs of compliance with unlawful supervision conditions; and severe emotional distress, anxiety, humiliation, and stigma.

HOPE's and Palacios's fraud was committed with malice, oppression, and in conscious disregard of Plaintiff's rights. HOPE continued applying the same blanket retention policy after it was judicially condemned in Dwyer (March 2023) and after the April 2025 regulatory amendments were enacted to correct these deficiencies. The wrongful acts were committed, authorized, ratified, or consciously disregarded by HOPE's managing agents—including Palacios (site director with supervisory authority over treatment determinations) and HOPE's Executive Director of Clinical Training (who testified to the blanket policy in Dwyer)--within the meaning of Civil Code §

3294(b). Plaintiff is entitled to punitive damages.

SECOND CAUSE OF ACTION

NEGLIGENCE

Against All Defendants

Plaintiff incorporates by reference all preceding paragraphs.

As a CASOMB-certified treatment provider performing delegated governmental functions that directly affect the liberty of individuals under state supervision, HOPE owed Plaintiff a duty of reasonable care. Giraldo v. Department of Corrections & Rehabilitation (2008) 168 Cal.App.4th 231, 253. This duty encompasses: (a) establishing standardized, objective treatment completion criteria that provide a meaningful, achievable path to completion consistent with Penal Code § 3008(d)(2); (b) providing individualized clinical assessments of treatment progress rather than applying blanket retention policies; (c) maintaining accurate and complete records of Plaintiff's homework, phase progress, and clinical achievements; (d) providing treatment characterizations to CDCR that accurately reflect Plaintiff's individual clinical performance; and (e) maintaining the separation of treatment completion from parole discharge as required by 15 CCR § 3574(f)(1).

Palacios, as Director of the HOPE Stockton program with supervisory authority over treatment determinations affecting Plaintiff, owed Plaintiff a personal duty of care in the exercise of that authority.

HOPE and Palacios breached these duties by: (a) operating a treatment system with no published, objective completion criteria; (b) requiring arbitrary dual-phase repetitions (Core twice, Maintenance twice) with no basis in statute or regulation; (c) routinely losing homework assignments and forcing participants to restart phases due to staff turnover or group changes; (d) applying a blanket retention policy that predetermines non-completion regardless of individual

performance; (e) failing to provide any appeal or challenge process for titration, phase advancement, or completion decisions; and (f) providing treatment characterizations to CDCR that were products of a blanket policy rather than individualized clinical assessments.

HOPE is a private entity and does not enjoy governmental immunity under Government Code §§ 815–818.9. HOPE's liability is assessed under ordinary tort principles. Giraldo, supra,168 Cal.App.4th at 253.

As a direct and proximate result, Plaintiff has suffered: continued parole supervision based on unreliable treatment determinations; lost employment opportunities and income as a CDL holder; compliance costs; and emotional distress, anxiety, humiliation, and stigma.

THIRD CAUSE OF ACTION

FALSE IMPRISONMENT / UNLAWFUL RESTRAINT

Against All Defendants

Plaintiff incorporates by reference all preceding paragraphs.

False imprisonment is the nonconsensual, intentional confinement of a person, without lawful privilege, for an appreciable period of time. Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715. Confinement is not limited to physical incarceration; it encompasses any exercise of force or express or implied threat of force by which a person is deprived of liberty or compelled to remain where he does not wish to remain, or to go where he does not wish to go. Id. at 715–716; Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1123.

Plaintiff is subject to continuous, custodial state control. He wears a GPS monitoring device at all times. He is subject to curfew. He is geographically restricted. He must attend mandatory HOPE treatment sessions multiple times per week. He must report to parole officers. He cannot freely travel, associate, or accept employment. These conditions constitute custodial restraint. People v. Dominguez (2010) 180 Cal.App.4th 1351, 1358–1359 (GPS monitoring is a significant

restraint on liberty); In re Stevens (2004) 119 Cal.App.4th 1228, 1234 (parole is "constructive custody").

HOPE and Palacios directly caused and contributed to Plaintiff's continued custodial restraint. HOPE provided the predetermined "non-completion" characterization that CDCR incorporated into the Discharge Review Report as the treatment-based justification for continued supervision. Without HOPE's misrepresentation, the discharge review would not have had the treatment-based predicate it relied upon. HOPE's conduct was a substantial factor in causing Plaintiff's continued custodial restraint.

HOPE's misrepresentation was a but-for cause of Plaintiff's continued restraint, and a substantial factor in producing it, even if CDCR also exercised discretion in the discharge decision. CDCR's discharge review process was substantially dependent on HOPE's treatment characterization, and CDCR adopted that characterization wholesale. The intervening exercise of CDCR's discretion does not break the causal chain where HOPE knowingly supplied false input to a custodial decision. See Venegas v. Wagner (2015) 235 Cal.App.4th 1063, 1076 (third party's intervening decision does not break causation where defendant's conduct was a substantial factor).

This custodial restraint is without lawful privilege as against HOPE. HOPE's contribution to the restraint—the non-completion characterization—is the product of a blanket retention policy that violates Penal Code § 3008(d)(2) (by converting a durational ceiling into a mandatory floor), 15 CCR § 3574(f)(1) (by collapsing legally separate decisions), and common law fraud (by misrepresenting a policy-driven predetermination as an individualized assessment).
A private entity that knowingly supplies false or ultra vires input to a custodial decision has no privilege to cause the resulting confinement. HOPE's conduct falls outside any conditional privilege because it knew the characterization was the product of a blanket policy, not an individualized clinical determination.

HOPE acted intentionally. HOPE knew its blanket retention policy made completion impossible. HOPE knew CDCR relied on its completion characterizations. HOPE knew its "non-completion" representations would result in continued custodial supervision. HOPE provided those representations anyway, for over five years, while collecting approximately $10,600 per year in baseline fees from Plaintiff's continued enrollment.

Plaintiff's continued custodial restraint from November 19, 2025 (finalization of the discharge review relying on HOPE's misrepresentation) to the present constitutes a continuing act of unlawful restraint. The restraint is ongoing.

As a direct and proximate result, Plaintiff has suffered: deprivation of physical liberty; restrictions on movement, employment, and association; lost income totaling no less than $109,408 for 2022–2024 as measured by the difference between his but-for CDL earning capacity of $72,000 per year and his actual, supervision-suppressed W-2 earnings of $39,553 (2022), $11,145 (2023), and $55,894 (2024), with losses continuing to accrue; and severe emotional distress, anxiety, humiliation, and stigma.

FOURTH CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

Against All Defendants

Plaintiff incorporates by reference all preceding paragraphs.

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct; (2) intent to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe emotional distress; and (4) actual and proximate causation. Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.

HOPE's and Palacios's conduct was extreme and outrageous. A private treatment provider exercising delegated authority over a person's liberty: (a) operated a treatment system designed to

ensure no participant can ever complete, regardless of effort or progress; (b) misrepresented the output of that system to the government agency that controls Plaintiff's custody as an individualized clinical assessment; (c) profited financially from every day Plaintiff remained enrolled; (d) continued these practices after a California court specifically condemned them as vitiating the Legislature's directive; (e) continued after regulatory amendments were enacted to correct the deficiencies; (f) routinely lost Plaintiff's homework and forced him to restart treatment phases; and (g) provided no written criteria, appeal process, or mechanism for Plaintiff to challenge his status.

HOPE and Palacios acted with reckless disregard for the probability of causing emotional distress. By March 2023, the Dwyer ruling provided specific notice that HOPE's retention practices had been judicially condemned. By December 2023, the Macomber demurrer ruling provided additional notice. By April 2025, the § 3574 regulatory amendments provided regulatory confirmation. HOPE's continuation of the identical practices through November 2025 and beyond —with full knowledge that those practices directly caused continued custodial supervision— demonstrates, at minimum, reckless disregard.

The power disparity heightens the outrageousness of HOPE's conduct. Plaintiff cannot withdraw from HOPE's treatment without violating his parole conditions. He is a captive client. HOPE exploits that captivity by operating a system from which there is no exit, while collecting per-session fees for as long as the captivity lasts. Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 498–499.

Plaintiff has suffered severe emotional distress, including: pervasive anxiety from continuous GPS monitoring and custodial restrictions imposed based on HOPE's predetermined characterization; humiliation and stigma from being classified as having failed treatment under a system where success is unattainable; chronic sleep disturbance and hypervigilance arising from the

cumulative stress of arbitrary custodial control; psychological harm from the knowledge that his custody is the product of a financial arrangement, not a clinical determination; and ongoing distress from five years of entrapment with no achievable exit.

HOPE's and Palacios's conduct was a substantial factor in causing Plaintiff's severe emotional distress.

FIFTH CAUSE OF ACTION

INTENTIONAL INTERFERENCE WITH PROSPECTIVE ECONOMIC ADVANTAGE

Against All Defendants

Plaintiff incorporates by reference all preceding paragraphs.

The elements of intentional interference with prospective economic advantage are: (1) an economic relationship between plaintiff and a third party, with the probability of future economic benefit; (2) defendant's knowledge of the relationship; (3) intentional acts designed to disrupt the relationship; (4) actual disruption; and (5) economic damage proximately caused by the defendant's acts. Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134; 1153. The defendant's conduct must be independently wrongful—unlawful apart from the interference itself. Id. at 1158–1159.

A. Economic Relationship

Plaintiff holds a valid California Commercial Driver's License. Plaintiff has a documented, established economic relationship with the commercial trucking industry, evidenced by W-2 wage statements showing employment with six different carriers over three years: PRP Logistics LLC, PODS Enterprises LLC, Tiger Lines, Rocha Transportation, Centerline Drivers LLC, and BND Transport Inc. These records document actual, supervision-suppressed CDL earnings of $39,553 (2022), $11,145 (2023), and $55,894 (2024). Absent Defendants' tortious conduct, Plaintiff's unrestricted CDL earning capacity in the Central Valley market is no less than $72,000 per year.

The year-by-year difference between Plaintiff's but-for capacity and his actual earnings—$32,447 (2022), $60,855 (2023), and $16,106 (2024)—demonstrates both the existence and the magnitude of Defendants' interference. Plaintiff had a probability of future economic benefit from these carrier relationships because CDL holders are in high demand, Plaintiff possessed the required credential, and he had active, recurring employment relationships with multiple carriers.

B. Defendants' Knowledge

HOPE and Palacios knew that Plaintiff's parole supervision conditions—conditions directly caused by HOPE's "non-completion" characterization—restricted his ability to accept and perform CDL employment. HOPE was aware, through Plaintiff's treatment participation and CTM discussions, that he is a CDL holder and that continued supervision conditions interfered with his ability to work. Palacios, as the director overseeing Plaintiff's treatment, had personal knowledge of Plaintiff's employment situation.

C. Independently Wrongful Conduct

HOPE's and Palacios's intentional acts disrupted Plaintiff's prospective economic relationships: HOPE provided a predetermined non-completion characterization—a misrepresentation produced by a blanket retention policy, not an individualized assessment—that served as the treatment-based justification for continued supervision. That continued supervision imposed the GPS monitoring, curfew, geographic restrictions, and mandatory treatment attendance that prevented CDL employment.

These acts are independently wrongful. They constitute fraud (First Cause of Action) and false imprisonment (Third Cause of Action) as alleged in this complaint. Additionally, HOPE's blanket retention policy independently violates Penal Code § 3008(d)(2)'s requirement that treatment last "at least one year and up to the entire period of parole" (by converting the durational ceiling into a mandatory floor) and 15 CCR § 3574(f)(1)'s mandate that treatment completion and

parole discharge be maintained as "legally separate decisions." The wrongfulness does not depend on the interference itself. Korea Supply, supra, 29 Cal.4th at 1158–1159.

D. Actual Disruption and Damage

Plaintiff's prospective economic relationships were actually disrupted. He has been unable to: accept long-haul trucking positions requiring unrestricted travel; comply with the scheduling demands of regional routes due to mandatory HOPE treatment attendance; or present himself to employers free from GPS monitoring and the supervision conditions that restrict commercial driving.

As a direct and proximate result, Plaintiff has suffered economic damages including: lost wages totaling no less than $109,408 for the years 2022 through 2024, calculated as the year-by-year difference between Plaintiff's but-for CDL earning capacity of $72,000 per year and his actual, supervision-suppressed W-2 earnings ($32,447 lost in 2022; $60,855 lost in 2023; $16,106 lost in 2024); continuing lost wages accruing at approximately $6,000 per month ($72,000 annually) for each month Plaintiff remains unable to pursue unrestricted CDL employment; lost employment opportunities with specific carriers who previously employed him on a recurring basis; diminished earning capacity; and other economic losses to be established with further specificity through discovery and at trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and against Defendants HOPE Psychotherapy, Inc. and Katie Palacios, and award the following relief:

(A) Compensatory damages in an amount to be proven at trial, including economic damages for lost employment opportunities and income as a CDL holder, costs of compliance with unlawful supervision conditions, and non-economic damages for emotional distress, anxiety, humiliation, stigma, and restrictions on liberty, movement, and association;

(B) Special damages for lost wages and diminished earning capacity totaling no less than $109,408 for the years 2022 through 2024, representing the documented difference between Plaintiff's but-for CDL earning capacity of $72,000 per year and his actual, supervision-suppressed W-2 earnings, plus continuing lost wages accruing at no less than $6,000 per month from November 19, 2025, to the date of judgment;

(C) General damages for false imprisonment and unlawful restraint;

(D) Punitive damages against both Defendants pursuant to Civil Code § 3294, for fraud and other conduct committed with malice, oppression, and conscious disregard of Plaintiff's rights by Defendants' managing agents;

(E) A declaration that HOPE's blanket retention policy—under which no parolee can complete treatment prior to parole discharge regardless of clinical progress—is unlawful as applied to Plaintiff and inconsistent with Penal Code § 3008(d)(2) and Title 15 CCR § 3574(f)(1). The controversy is capable of repetition yet evading review as to Plaintiff because HOPE continues to apply the same policy in ongoing treatment sessions and will continue to submit treatment characterizations to CDCR in future discharge reviews;

(F) An injunction requiring HOPE to conduct a bona fide, individualized assessment of Plaintiff's eligibility for treatment completion based on published, objective clinical criteria, free from the blanket retention policy;

(G) Prejudgment and postjudgment interest at the maximum legal rate;

(H) Costs of suit; and

(I) Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

LIST OF EXHIBITS

The following exhibits are attached hereto and incorporated by reference:

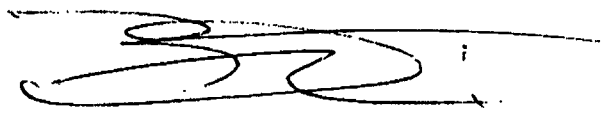
Exhibit A: Order in In re Frederick Dwyer, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023)

Exhibit B: Relevant excerpts of Alameda County Probation Department Procurement Contract No. 26374, First Amendment (HOPE billing rates and payment terms)

Exhibit C: CDCR Form 1502-DR Discharge Review Report dated November 12, 2025

Dated: February 10, 2026

Respectfully submitted,



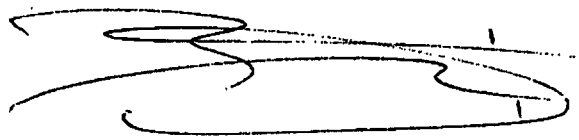
BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, am the Plaintiff in the above-entitled action. I have read the foregoing Complaint and know the contents thereof. The matters stated therein are true of my own knowledge, except as to those matters which are stated on information and belief, and as to those matters, I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 10, 2026, at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

EXHIBIT A

ENDORSED FILED
SAN MATEO COUNTY

MAR 2 0 2023

Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re:	Case No. SC-080355A
	HC-3020
FREDERICK DWYER.	
On Habeas Corpus.	**ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. … Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), … are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County

EXHIBIT B

AGENDA #_____, January 9, 2024

ALAMEDA COUNTY PROBATION DEPARTMENT

P.O. Box 2059
1111 Jackson Street
Oakland, CA 94604-2059

MARCUS DAWAL
Chief Probation Officer

December 21, 2023

Honorable Board of Supervisors
County of Alameda
1221 Oak Street, Suite 536
Oakland, California 94612-4305

SUBJECT: APPROVE A FIRST AMENDMENT WITH HOPE PSYCHOTHERAPY, INC. FOR SEX OFFENDER THERAPY SERVICES; PROCUREMENT CONTRACT NO. 26374; AMOUNT: $100,000

Dear Board Members:

RECOMMENDATION:

Approve a First Amendment to Standard Services Agreement (Procurement Contract No. 26374) with HOPE Psychotherapy Inc. (Principal: Shannon Smith; Location: Hayward), to provide youth sex offender treatment services, extending the current term of 7/1/23 – 6/30/24 by one year until 6/30/25, and increasing the contract amount from $25,000 to $100,000 ($75,000 increase).

DISCUSSION/SUMMARY:

The Alameda County Probation Department (ACPD) contracts with HOPE Psychotherapy, Inc. (HOPE) for youth sex offender treatment services. HOPE works with youth and young adult clients in individual and group settings. The program specializes in forensic and cognitive behavioral therapy, as well as general psychotherapy for individuals, couples, and families coping with emotional, behavioral, and psychological challenges. In the past year, the program has seen an increase of young adults being ordered to sex offender treatment who are older than 18.

The increase in the contract amount is being requested due to the increased amount of court orders for treatment services for youth and young adults. The treatment time for program participants is at least one year. During this amendment term, ACPD will work with General Services Agency to complete a formal bid to secure a long-term contract.

SELECTION CRITERIA/PROCESS:

ACPD has determined that the County does not currently have the resources to provide sex offender treatment services.

ACPD issued an Informal Request for Quote (IRFQ) in March 2022. Two responses to the IRFQ were received and evaluated. HOPE, a local vendor, was the lowest qualified vendor who met all the requirements of the IRFQ. ACPD is satisfied with the services provided by HOPE.

To provide sex offender treatment, agencies need to be certified by the California Sex Offender Management Board (CASOMB). In Alameda County, there are only five agencies certified by CASOMB. ACPD did not receive any bid responses from certified Small Local Emerging Businesses. Due to the nature of this unique service and limited certified agencies in Alameda County, subcontracting opportunities are not available. As a result, the SLEB requirements have been waived by the Office of Acquisition Policy (SLEB Waiver No. 9187, expires 6/30/2025).

FINANCING:

Funding for this contract amendment is included in ACPD Fiscal Year 2023-24 Approved Budget. No additional funding is required and there will be no increase in net County costs.

VISION 2026 GOAL:

Youth sex offender treatment services meet the 10X goal pathway of a **Crime Free County** in support of our shared vision of a **Safe & Livable Communities.**

Respectfully submitted,

Marcus Dawal
Chief Probation Officer

MD:yw

Procurement Contract No. 26374

COUNTY OF ALAMEDA
STANDARD SERVICES AGREEMENT

This Agreement, dated as of July 1, 2023, is by and between the County of Alameda, hereinafter referred to as the "County", and Hope Program, A Licensed Clinical Social Worker Professional Corporation dba Hope Psychotherapy, Inc., hereinafter referred to as the "Contractor".

WITNESSETH

Whereas, County desires to obtain Youth Sex Offender Treatment services which are more fully described in Exhibit A hereto ("Sex Offender Treatment"); and

Whereas, Contractor is professionally qualified to provide such services and is willing to provide same to County; and

Now, therefore it is agreed that County does hereby retain Contractor to provide Sex Offender Treatment, and Contractor accepts such engagement, on the General Terms and Conditions hereinafter specified in this Agreement, the Additional Provisions attached hereto, and the following described exhibits, all of which are incorporated into this Agreement by this reference:

Exhibit A	Definition of Services
Exhibit B	Payment Terms
Exhibit C	Insurance Requirements
Exhibit D	Debarment and Suspension Certification
Exhibit E	Prison Rape Elimination Act Certification

The term of this Agreement shall be from July 1, 2023 through June 30, 2025.

The compensation payable to Contractor hereunder shall not exceed *One Hundred Thousand dollars ($100,000)* for the term of this Agreement.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first above written.

COUNTY OF ALAMEDA

By: _____
Signature

Name: _____
(Printed)

Title: President of the Board of Supervisors

Date: _____

HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION dba HOPE PSYCHOTHERAPY, INC.

By: DocuSigned by: Shannon Smith 3850FE5A4[illegible]
Signature

Name: Shannon Smith
(Printed)

Title: CEO

Date: 12/26/2023

Approved as to Form:
Donna R. Ziegler, County Counsel

By: DocuSigned by: K. Joon Oh EFBCE3E[illegible] 12/20/2023
K. Joon Oh, Deputy County Counsel

By signing above, the signatory warrants and represents that he/she executed this Agreement in his/her authorized capacity and that by his/her signature on this Agreement, he/she or the entity upon behalf of which he/she acted, executed this Agreement

EXHIBIT B

PAYMENT TERMS

1. County will use its reasonable efforts to make payment to Contractor upon successful completion and acceptance of the following services listed within thirty (30) days upon receipt and approval of invoice.

Description of Services	Cost
Psychosexual Evaluation	$1,800.00
Individual Psychotherapy – 60 minutes	$200.00
Group Psychotherapy – 90 minutes	$100.00
Family Psychotherapy – 60 minutes	$185.00
Collaborative Model Team meeting (CMT) – 90 minutes	$100.00
Chaperone Training	$200.00
Visual Reaction Time Measure of Sexual Interest and Report	$500.00
Quarterly Treatment Plans	$125.00

No shows, whether excused or unexcused, cannot be billed

2. County will use its best efforts to make payment to Contractor within thirty (30) days upon receipt, review, and approval of invoice with acceptable back-up documentation, Contractor shall provide additional backup documentation and other information and records as requested by the County.

3. Invoices shall be submitted along with the required statement of completed services.by the 10th of each month (or the next business day with the 10th is on a weekend or holiday) upon completion of work.

   a. Invoices shall be submitted via ACPD's Finance Portal at https://fiscal.acgovpb.org.

   b. Invoices will be reviewed for accuracy and approval by the County, Probation Department.

   c. Services have been provided and completed during the term of the contract.

   d. The service type provided, rates are consistent with, and comply with, the terms of the contract.

   e. The amounts on the invoice are mathematically correct.

4. Total payment under the terms of this Agreement will not exceed the total amount of $100,000. This cost includes all taxes and all other charges.

EXHIBIT C

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE Case Type: **PC3000(b)(5)(B)**

CDC Number:	Print Name (Print Last, First, MI):		Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**		**N**	**STOCKTON 2 GPS**
CSRA Score:	Supervision Category:	Discharge Review Date:	Controlling Discharge Date:	
2	**SA**	**12-01-2025**	**12-02-2030**	

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] | DNA Sample Obtained: [X] YES [ ] NO | Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO | Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: 4

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):

[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)

01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)

[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)

2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-18 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)

[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):

[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO

If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant

[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):

[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ 0 Outstanding balance: $ 0

Employment (Note any employment, educational or vocational training):

Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time

Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Employer Name (If applicable):

Program Name (If applicable):

Position:

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION II PAROLEE DYNAMIC PROFILE

CATEGORY: SA CSRA: 2

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

STATE OF CALIFORNIA
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DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION III RECOMMENDATION

Parole Agent Recommendation:

☐ Retain on Parole ☒ Discharge Denied/No Action

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabiliation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	**LONG MOUA**	**7472**	**11-14-2025**

Unit Supervisor Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer to BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

☒ Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	**GARY NOGUCHI**	**7284**	**11-19-2025**

Parole Administrator Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer To BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	**KEELY DODD**	**6462**	**11-19-2025**

Parolee Provided Copy (Date)

☐ Mailed By (Initials):

☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652